MT. ASCUTNEY CORP.

Brownsville, Vermont

AMENDED DECLARATION OF PROTECTIVE COVENANTS,

RESTRICTIONS AND RESERVATIONS

THIS AMENDMENT made at West Windsor, Vermont by Mt. Ascutney Corporation, (hereinafter referred to as Ascutney), a Vermont corporation having its principal place of business in Brownsville, Vermont, successor in title to Mt. Ascutney Ski Area, Inc. and owner of lands and premises at the Mt. Ascutney Ski Area, in West Windsor, Vermont.

PREAMBLE

WITNESSETH: WHEREAS, Ascutney is the owner of a recreational ski area known as the Mt. Ascutney Ski Area, by virtue of a warranty deed dated September 22, 1972 from Mt. Ascutney Ski Area, Inc., recorded in Book 18 at Pages 491-501 of the West Windsor Land Records; and

WHEREAS, On April 5, 1965 Mt. Ascutney Ski Area, Inc. declared certain real property subject to protective covenants by virtue of a Declaration of Protective Covenants, Restrictions and Reservations (hereinafter referred to as Protective Covenants), recorded in Book 15 at Page 324 of the West Windsor Land Records; and

WHEREAS, the Protective Covenants dated April 5, 1965 made reference to real property depicted on a plot plan entitled

"Mt. Ascutney Real Estate Development Plan" dated and prepared by W. Brook Fleck, A.I.A. Registered Architect; and

WHEREAS, an examination of the West Windsor Land Records does not disclose the recording of said plot plan and there is confusion and inconsistency as to what property may be subject to said Protective Covenants; and

WHEREAS, Ascutney, pursuant to Article VI B of said Protective Covenants, reserved the right to amend the Protective Covenants provided that the amendment shall be submitted to each lot owner at his last known address at least sixty days before it shall take effect and provided further that each such amendment shall be approved by a majority of all owners; and

WHEREAS, on May 8, 1969 Mt. Ascutney Ski Area, Inc. declared an area referred to as "Sky Hawk Village Development" subject to protective covenants (hereinafter referred to as Sky Hawk Covenants) by virtue of an instrument recorded in Book 16 at Pages 633-636 of the West Windsor Land Records; and

WHEREAS, the Sky Hawk Covenants made reference to a plot plan known as the "Sky Hawk Village Development", as may be revised from time to time, excluding other lands owned by Mt. Ascutney Ski Area, Inc.; and

WHEREAS, while an examination of the West Windsor Land Records does disclose the existence of plot plans referring to the Sky Hawk development, there is uncertainty as to what property is subject to the Sky Hawk Covenants; and

WHEREAS, Ascutney pursuant to paragraph 17 of said Sky Hawk Covenants reserved the right to amend the Sky Hawk Covenants when it "shall deem such notification to be in the best interest of the development"; and

WHEREAS, Ascutney purported to adopt Protective Covenants known as Ascutney Mountain Village, incorporating the Sky Hawk Covenants, and various deeds to lots are subject to such covenants, although those covenants are not recorded as such in the West Windsor Land Records; and

WHEREAS, the Ascutney Mountainside Condominiums, Ascutney Mountain Village Condominiums and the Sky Hawk and Mountain Village lots are purportedly not subject to the Protective Covenants, although other areas of Mt. Ascutney Ski Area are subject to said covenants, and the Village Houses situated on Lots LA1 and LA2 are subject to a Declaration of Covenants, Restrictions, Limitations, Easements and Uses dated May 19, 1972, recorded in Book 18 at Page 363-387 of the West Windsor Land Records, in addition to the Protective Covenants; and

WHEREAS, Ascutney now plans a major expansion of the ski facility, including expanding and improving the ski trails, lifts, snow making capability and related amenities, together with construction of a condominium hotel complex, condominiums, health club and other commercial development for a year-round resort area of the highest quality while preserving the aesthetic and natural beauty of the area; and

WHEREAS, Ascutney desires to amend the Protective Covenants and Sky Hawk Covenants by rescinding them in their entirety and adopting uniform and underlying protective covenants in the best interests of all lot and condominium unit owners and Ascutney, and their successors in interest.

NOW THEREFORE, for the reasons above set forth, and with the consent of the existing lot and condominium unit owners at the Mt. Ascutney ski area development, Ascutney hereby amends the Protective Covenants dated April 5, 1965, recorded in Book 15 at Page 325 of the West Windsor Land Records and further hereby amends the Sky Hawk (Ascutney Mountain Village) Covenants dated May 8, 1969, recorded in Book 16 at Pages 633-636 of the West Windsor Land Records, by deleting in their entirety all terms, conditions and provisions thereof and hereby declares from the date of recording hereof the following amended restrictive covenants shall be binding upon and for the mutual benefit of all property owners, including Ascutney and its successors.

ARTICLE I

Definitions

For the purposes of this Declaration, the following terms will have the following meanings:

a. Owner - An owner shall be deemed to be the person(s), partnership or corporation, trustee or other legal entity, so named in the deed conveying title to a lot or condominium unit. An owner shall not include a person, corporation or other legal

entity taking title as security for the payment of money or the performance of any obligation. An owner shall also include Ascutney.

b. Ascutney - All references to Ascutney shall mean Mt. Ascutney Corporation, a Vermont corporation with its principal place of business in West Windsor, Vermont, and any successors or assigns of said corporation.

c. Lot - A lot shall be a parcel of land, the boundaries of which are generally indicated by lines on a revised Plot Plan described in Article II and, in the case of residence lots, are designated by a lot number on said plan. A lot shall also be construed, where relevant, to include an interest in a condominium unit.

d. Utility Easements - Utility easements shall mean all water and sewer pipe lines which lie beneath the surface of the ground and also all electric, telephone and other wire lines with poles and other necessary appurtenances which run above or below the surface of the ground.

ARTICLE II

Property Subject to this Declaration

The real property which is and shall be subject to the covenants, restrictions and reservations contained in this amended Declaration is situated within the Town of West Windsor, Vermont known generally as the Mt. Ascutney Ski area, and the boundaries thereof are generally depicted on a

plot plan dated May 11, 1984 prepared by The Cavendish Partnership of Ludlow, Vermont, entitled "Mt. Ascutney Master Plan", a copy of which plot plan is marked Exhibit A attached hereto and a mylar thereof to be recorded in the West Windsor Book of Maps.

ARTICLE III

Classification of Land

The aforesaid plot plan has designated thereon the location of various residential lots, condominium areas, common rights-of-way, parcels and strips of land which are hereby set aside, established and classified for the general purposes hereafter described in Article IV and otherwise. Such designations include the following:

Common Rights-of-Way

Common Areas

Residential Lots

Condominium Areas

Recreation Areas

Future Development

Utility Line Areas

ARTICLE IV

Protective Restrictions for Particular Areas

The restrictions and covenants which apply to and within the areas covered by this Declaration shall vary according to

the classifications mentioned in Article III, and except as herein provided the sole uses to which such classified premises may be put and the restrictions and covenants which apply thereto are as follows:

A. Common Rights-of-Way - Within the areas designated from time to time by Ascutney as common rights-of-way, all owners and their guests and business visitors and hotel guests shall have the right to travel in vehicles and otherwise in common with others at reasonable speeds and subject to reasonable restrictions as may be imposed from time to time by Ascutney or the Town of West Windsor, reserving to Ascutney the right to change the location of said roads and terminate such portions of said roads as Ascutney may deem necessary or convenient, so long as the changes and terminations shall not deny an owner with full and complete access from a public way to his property. Utility lines may be laid and maintained beneath or above common rights-of-way.

B. Common Areas - Within the areas designated common areas, such land shall be held by Ascutney in its present state, or may be developed and improved so as to enhance and protect the entire development and for the benefit of all owners in the development. Within the common areas Ascutney shall have the right to install and maintain utility poles and wires, water, sewer, gas and drainage pipes, mains and conduits, catch basins, surface drains and culverts, subsurface sewerage disposal areas, ponds, and such other facilities, installations, appurtenances and things relating to utilities, sewer, water and snow making

facilities provided; however, Ascutney shall not unreasonably interfere with the natural state of the common areas and shall restore all disturbed areas following such installation.

C. Residential Lots - Within the areas designated residential lots, the following restrictions shall apply:

1. Building and Professional Codes - Any and all construction, alterations, buildings or improvements shall conform in all respects to the applicable building, professional and trade, codes then in effect in the State of Vermont, or in the absence thereof, such national or other codes as may have been adopted by the State of Vermont, and in the absence of such adoption, such national codes then nationally adopted, approved and accepted by the building professions and trades.

2. Residence Use - An owner shall use a residential lot only for residential purposes, and each residential lot shall be restricted for a one-family dwelling house use only, and only one single-family dwelling house and one garage of not more than a three-car capacity shall be erected or maintained on the premises.

3. Commercial Use - No commercial use of any nature whatsoever shall be conducted on any residential lots. However, Ascutney in its development of the project area shall not be subject to the provisions of this covenant, and the covenants shall apply only to residential lots sold by Ascutney. This covenant shall not be interpreted to prevent private residential rental of the premises by the owner to other private parties.

4. Setback - No building or structure, or any part thereof, shall be erected on any of the said residential lots in the development the outside walls of which shall be less than 25 feet

from any street or road or 25 feet from the side or rear boundary lines of the said residential lot, nor shall any cesspool, septic tank, leaching basin of sewage disposal field be constructed within 50 feet of the edge of any brooks, streams or ponds.

5. Subdivision - None of the said residential lots shall be subdivided for purposes of sale or any other purpose, except with the prior written consent of Ascutney.

6. Trailers and Outbuildings - No house trailers, mobile homes, mobile units or other prefabricated transportable units or homes shall be at any time placed upon or used upon the premises hereby conveyed for any purpose whatsoever, whether or not the same are permanently affixed to the real estate.

7. Temporary Buildings - No dwelling house constructed on any of the residential lots shall be occupied unless and until it is completed and no temporary buildings shall be occupied for dwelling purposes upon said residential lots during the construction thereof.

8. Signs/Advertising - No signs of any type shall at any time be erected upon the premises and residential lots without the express prior written approval of Ascutney, with the exception that a small sign not to exceed 72 square inches may be erected for the purpose of identifying the name of the owner of the residential lot only and for no other purpose, and there shall at no time be any physical advertising in the form of signs or otherwise, and for any purpose, used upon the premises.

9. Maintenance - The owner shall at all times maintain the exterior of the premises in a clean, neat and presentable

fashion, and will not store or permit the accumulation of any refuse or debris, and will not at any time dispose of any material or articles by burning the same on the premises.

10. Tree Cutting - Evergreen trees over two (2) inches in diameter and deciduous trees over three (3) inches in diameter, both when measured three (3) feet above the ground, may not be cut for any purpose whatsoever without the express prior written approval of Ascutney excepting when the cutting is necessary for the actual placement in the area of a house, patio or driveway, site preparation and in the construction of a home.

D. Condominium Areas - Within the areas designated condominium areas, all existing condominiums shall be subject to their respective Declaration Establishing a Plan for Condominium Ownership as recorded in the West Windsor Land Records, together with the Protective Covenants herein not inconsistent therewith.

E. Recreation Areas - Within the areas designated recreation areas, all owners and their families, guests and business visitors shall have the right to use and enjoy the Ascutney ski area facilities in common with others, under the same conditions and at the same rates then customarily being charged.

F. Future Development - Within the areas designated future development, Ascutney reserves the exclusive right to develop by the installation and/or construction of condominiums (including a condominium/hotel and conference center), health club facility, tennis courts, swimming pools and ponds, and

related residential, commercial and recreational amenities, together with roads, parking areas, utility areas and sewer and water facilities, and to maintain and designate additional "Recreational Areas". In the event Ascutney purchases lots contiguous to the "Future Development" area then Ascutney shall have the right to redesignate said residential lots for future development; provided, however, Ascutney shall not construct any buildings within 50 feet of a residental lot not owned or controlled by Ascutney without the prior written consent of such owner and shall further comply with all municipal and other governmental laws, zoning ordinances, by-laws, rules and regulations affecting said future development area.

G. Utility Line Areas - Utility line areas shall consist of land twenty feet in width in such locations as may be designated by Mt. Ascutney Corporation, its successor or assign, within areas designated as "Common Rights-of-Way", "Common Areas", "Recreation Areas", and "Future Development" and in such other areas heretofore reserved by Mt. Ascutney. Within such twenty foot strips of land, Ascutney and its successors and assigns shall have an easement for the purpose of installing, maintaining and repairing utility lines, facilities and services, which may include but are not limited to those necessary for water, sewer, electricity, gas and telephone services. Within such Utility Line Areas, the following restrictions shall apply:

1. No buildings, structure, tree or other object shall be built upon or permitted to be or encroach upon a utility

line area and Ascutney reserves the right to remove all such buildings, structures or objects from any such area.

2. Access to utility line areas shall always be available to persons seeking to install, maintain and repair utility lines and facilities of all sorts, whether above or below the surface of the ground and whether or not it is necessary for the purposes of such access, installation, maintenance and repair to enter upon any other property not designated as utility line areas, the use of such utility line areas to be generally for the good of all lot owners in the maintenance of utility lines, facilities and services.

ARTICLE V

General Protective Restrictions

The following restrictions shall apply to and within all areas covered by this Declaration, regardless of classification except as otherwise contained herein:

A. Nuisances - No obnoxious or offensive activities shall be carried on upon any lot or in any area and no unsightly objects shall be displayed upon any lot or in any area, nor shall anything be done which may be or may become an annoyance or nuisance to or endanger the health of any lot owner, his family, guests or business visitors.

B. Temporary Structures - No structure of a temporary character, trailer, basement, tank, shack, garage, barn or other outbuilding shall be used or permitted on any lot or in

any area at any time as a residence either temporary or permanent, other than such temporary structure necessary and used in the course of construction of permanent buildings. Boats may be stored or maintained on a lot only if housed completely in a building permitted hereunder, but this rule does not apply to temporary storage during the boating season.

C. Signs - No signs of any kind shall be displayed to the public view by any owner without the written consent of Ascutney except that: (a) one sign of not more than two square feet showing the owner's name and the name of the premises shall be permitted upon any lot; (b) if written consent is withheld by Ascutney for signs advertising property for sale or rent, then Ascutney shall maintain a list of properties for sale or rent and such list shall be available to the public at reasonable times and places. Under no circumstances shall projecting signs, overhanging signs, neon or brightly lighted signs or self-lighted signs be permitted on any lot. Nothing herein shall preclude Ascutney from maintaining signs promoting the ski area and condominium/hotel and related facilities, subject to local ordinances.

D. Prior Approval Necessary for Building - No building, sign, facility or structure shall be constructed, erected, or excavated upon any property or lot except in accord with plans and specifications which have been approved in writing by Ascutney or by an agency of Ascutney or a committee of lot owners designated by Ascutney. Ascutney agrees to use its

reasonable best efforts to review as promptly as circumstances permit all plans and specifications submitted to it in good faith. Such plans and specifications must set forth, in reasonable detail for all buildings, the type and quality of materials, a plot plan showing location of project on lot, drainage specifications, location of driveway into lot, location of culverts, location of all trees in excess of 12" diameter at base of trunk which are to be removed, exterior appearance of project when completed, and such other details as may be reasonably requested by Ascutney. The minimum construction requirements shall be as set forth in the current edition of the National Building Code.

E. Livestock and Poultry - No livestock or poultry of any kind shall be raised, bred or kept on any lot, except that dogs, cats and other household pets may be kept if they are not kept, bred or maintained for any commercial purpose.

F. Garbage and Refuse Disposal - No property or lot shall be used or maintained as a dumping ground for rubbish. Trash, garbage or other waste shall not be kept except in sanitary containers. All incinerators or other equipment for the storage or disposal of such material shall be kept in a clean and sanitary condition.

G. Sewage Disposal - No individual sewage-disposal system shall be permitted on any property or lot unless an Ascutney sewage-disposal system is not available for such lot. If an individual sewage disposal system is installed, it shall be constructed and maintained in accordance with the requirements of the public agency having jurisdiction. Garbage disposal

units may be connected to an Ascutney sewage-disposal system only with written permission from Ascutney. No storm drainage or surface water shall be permitted to flow into any Ascutney sewage-disposal system. No sewage containing high foam detergents or other chemicals which cannot satisfactorily be absorbed by the normal operation of the system shall be permitted to flow into any Ascutney sewage-disposal system.

H. Natural Drainage - Since the areas covered by this Declaration are situated on the side of a mountain, there will be a substantial amount of natural surface water drainage and runoff flowing over the area. No owner or other person shall interfere with or direct the natural course of any such drainage and runoff so as to alter its natural flow onto or across the land of another.

I. Preservation of Native Trees - No person or owner shall intentionally kill or cut down any tree on any lot without permission of Ascutney if the tree has a diameter at the base of its trunk in excess of twelve inches.

J. Antennas - No exposed or exterior radio, television or similar transmission or receiving antennas or towers, including satellite disks, shall be erected on any structure or attached thereto without the prior written consent of Ascutney.

ARTICLE VI

Rights Reserved to Ascutney

Ascutney reserves to itself, its successors and assigns, the following rights, privileges and easements in regard to

each and every lot and parcel within the area covered by this Declaration:

A. A six-foot permanent easement along, upon or across any part of each lot (except where a dwelling or other building is to be erected) for the installation and maintenance of underground and other utilities, such as sewer, water, gas and drain pipes, telephone and electric cables and underground vaults. Such easement strips shall be laid out near the edges of front, side and rear lot lines where practicable. Access shall be permitted at any and all times to the easement strips for purpose of installing, maintaining and repairing such utilities. Said easement shall in no way prohibit the owner of any lot from making any use of the easement area in a manner consistent with these easements.

B. (1) The right to make amendments to this Declaration and the protective covenants, restrictions and reservations herein contained: provided that each such amendment shall be submitted in writing by Ascutney by mail to each owner at his address last known to Ascutney at least sixty days before it shall take effect and provide further that each such amendment shall be approved by a majority of all owners who are such at the date of such amendment.

(2) The right to make special exceptions to the provisions contained in ARTICLE IV of this Declaration, to the extent that such special exceptions are deemed by Ascutney to be necessary and desirable and consistent with the general purposes of this Declaration and not of material financial detriment to any

existing lot owner; provided that each such special exception shall be submitted in writing by Ascutney by mail, at least sixty days before it shall take effect, to each owner at his address last known to Ascutney who owns property which lies within three hundred (300) feet from any part of the premises to which such special exception applies and that such exception is approved by a majority of such owner.

(3) If notice of a proposed amendment or special exception is sent as described above to an owner by registered or certified mail and if the owner does not notify Ascutney of his disapproval within sixty days from the date of mailing, such owner will be considered to have approved such amendment or special exception.

(4) Ascutney shall have the right to change the designation of any portion of the area designated "Future Development" into any designation as contained in Article 4 hereof, without securing the consent of any owner.

C. The right to sell, transfer, convey or assign to any municipal corporation or other corporation or association, from time to time, any or all of the common rights-of-way, roadways, common paths, recreation areas and common areas designated upon the Plot Plan attached hereto, of any rights or easements therein.

D. The right to sell, transfer, convey or assign, from time to time, any or all utility lines and easements of every type and all utility sewer and water facilities of all types to

any municipal corporation or other corporation or association which may be organized for or have as one of its principal purposes the building, maintenance, repair and carrying out of utility, sewer and water services for the areas covered by this Declaration.

E. The right to extend the protective covenants, restrictions and reservations herein set forth to other areas now or hereafter owned by Ascutney and thereby to enlarge the size of the development covered by this Declaration.

F. The right to require any owner to make use of and tie into, at his own expense, all water, sewer, electrical and other utility systems which may be established by Ascutney or any corporation designated by its agent or assignee of Ascutney's rights and duties to provide such utility services, provided such utility system has a pipe or wire abutting or adjacent to the lot. The connecting lines which run between the building and the main utility line shall be installed and maintained by the owner. Specifications for the construction of such tie-in lines shall be approved by Ascutney before the same are connected to the main line. Ascutney shall have the right to make reasonable capital and service charges (including therein a reasonable profit) for the use of such utility systems; such charges to be made on the basis of a reasonable formula determined by Ascutney which takes into consideration among other things, the size of the lot and the

actual or estimated amount of use by the lot owner. Such charges shall be subject to approval by any public authority having jurisdiction.

G. The right to make reasonable charges (including therein a reasonable profit) to owners for maintenance of common rights-of-way, and common areas which maintenance shall include but not be limited to snow removal, paving of roads and maintenance and repair of such facilities and which charges shall be made upon the basis of a reasonable formula determined by Ascutney which shall have relation to the size of the lot served and the availability of such facilities to the lot owner.

H. The right within the areas designated as Common Areas to construct, plant and maintain parts, general recreational facilities, gardens, shrubbery, trees and additional common paths.

I. The right within the areas designated as Recreation Areas to construct, plant and maintain anything permitted in a Common Area and also the right to construct and maintain recreational facilities.

J. The right to cut grass and clean up rubbish and trash on any lot at the lot owner's expense if the lot owner fails to do so after 10 days written notice by mail from Ascutney.

ARTICLE VII

Right of First Refusal

In addition to the rights reserved to Ascutney in Article VI herein, Ascutney shall have a right of first refusal

to repurchase all lots or condominium unit heretofore or subsequently conveyed by Ascutney, which right of first refusal shall run with the land and shall operate as follows:

(a) Any owner, or his agent, who desires to sell or transfer all or any part of his premises or any interest therein or desires to lease the same for more than three years and who has received a bona fide offer for its purchase or lease on terms that are acceptable to him, shall give notice in writing to Ascutney by registered or certified mail. Such notice shall set forth in detail the terms of the offer, the premises to be tranferred or leased, and the name, residence, business address and occupation of the offeror if an individual, or the name, address, type of business and principal officers and stockholders of the offeror, if a corporation.

(b) Such written notice shall constitute an offer to sell or lease the same premises to Ascutney upon the same terms contained in the notice. Such offer shall be deemed to have been accepted by Ascutney if, within ten (10) days from receipt of such notice, Ascutney executes and mails, postage prepaid, to the lot owner a written notice of acceptance. Within a further period of forty-five (45) days thereafter and contemporaneously with delivery of a proper warranty deed or lease by the owner to Ascutney, Ascutney shall pay to the owner the purchase price or the first installment of rent stated in said owner's notice to Ascutney.

(c) The following transfers are not subject to the right of first refusal:

1. A bona fide gift.

2. The making of a bona fide mortgage and a bona fide foreclosure thereunder.

(d) This right of first refusal shall be deemed to have been waived by Ascutney as to any conveyance made by a bona fide mortgagor to a bona fide mortgagee of such mortgagor's equity of redemption in the mortgaged premises provided that, within sixty days following such conveyance mortgagee offers the premises to Ascutney in writing at a price which is no greater than the total financial investment which mortgagee then has in the premises, which investment shall include but not necessarily be limited to the amount of: the outstanding mortgage principal balance due, the unpaid interest, taxes and insurance premiums advanced by mortgagee and mortgagee's costs of acquisition of the premises, including reasonable attorney's fees. Upon such offer being made, Ascutney may accept the same in the manner provided in (b) above.

(e) If Ascutney does not exercise its right of first refusal with respect to any particular sale, transfer or lease, and if such particular transaction is thereafter not concluded, then Ascutney's option continues to attach to all succeeding offers of sale, transfer or lease relating to the same property.

(f) Ascutney expressly reserves the right to convey this right of first refusal to an association of owners in the

development, and the owners individually and collectively acknowledge the right of such association to have the benefit of this restriction and to enforce the same.

ARTICLE VIII

Association of Owners

Each owner acknowledges as an essential incident to his purchase of a lot or condominium unit an Association of Owners in the development is desirable and will be beneficial to all owners in order to preserve and promote the character and living conditions in the development and to maintain, preserve and improve the Common Areas which are set aside for the benefit of all owners. Each owner, therefore, as an express consideration in the sale to him of a lot, or condominium unit, and in his acceptance of such conveyance, agrees that he will accept membership in an Association of Owners, and shall require any purchaser of such property from him to accept membership in such an Association. Neither the failure of an owner to obtain from his Grantee acceptance of membership in said Association, or the refusal of a Grantee to accept such membership shall affect or diminish the Grantee's obligation to comply with all of the By-Laws of such Assocition, including the obligation to pay dues and costs of operating the Association, including costs of maintaining the Common Areas, it being the mutual intent of each purchaser and owner and Ascutney that the covenant to abide by the By-Laws, rules and regulations of an Association of Owners, like all other covenants set forth

herein, shall run with the land and be binding upon and be the obligation of each purchaser and owner, and his heirs, successors and assigns.

ARTICLE IX

Enforcement

The violation or attempted violation of any covenant or restriction herein contained is hereby declared a nuisance which may be remedied by any appropriate legal proceedings. Further, if any owner shall at any time violate, attempt to violate or permit any violation or attempted violation of any of the covenants, restrictions or reservations herein set forth, it shall be lawful for Ascutney or any other owner or owners, or any association representing such owners to prosecute any proceedings at law or equity against such person or persons violating, attempting to violate or permitting such violation or attempted violation of any such covenants, restrictions and reservations, and either to prevent him or them from so doing or to recover damages or other awards for such violation or both. All or any of such proceedings may be maintained against any one violator of any covenant, restriction or reservation irrespective of the waiver of any prior violation or attempt of violation by the same or other lot owners.

The waiver by Ascutney or by any lot owner of any particular covenant, restriction or reservation on any one occasion shall not be construed as a waiver of the same or a similar covenant, restriction or reservation on any other occasion.

An owner by accepting a deed of conveyance of a lot or unit acknowledges that it is to the mutual benefit of all parties to enforce these Covenants and agrees to share proportionately costs of such enforcement. Furthermore, the rights of Ascutney herein may be assigned by it to any person including, but not limited to, an Association of Owners at the development.

ARTICLE X

Validity

Invalidation of any one of these covenants, restrictions or reservations by judgment or court order shall in no wise effect any of the other provisions which shall remain in full force and effect.

ARTICLE XI

Voting by Owners

Whenever in this Declaration the vote or consent of any owner or group of owners is required, there shall be one vote allowed for each owner who owns a lot which has, or is large enough to be permitted to have, a single family dwelling, or who owns a condominium unit, consistent with the provisions of this Declaration. An owner is permitted only one vote regardless of the size or number of lots and/or condominium units owned by him.

Such votes may be taken in or out of meeting and must be evidenced by a written instrument signed by the lot owner of record, except as herein provided.

ARTICLE XII

Miscellaneous

When the context so requires, the masculine gender shall

include the feminine and the singular shall include the plural and the plural the singular.

ARTICLE XIII

Term

This Declaration shall continue for twenty-five years from the effective date hereof and thereafter it shall continue for successive ten year periods unless and until it is terminated by the vote of a majority of the lot owners. The termination of this Declaration shall not terminate the property rights hereby or hereafter granted to owners and others in common rights-of-way, utility line areas, common areas, recreation areas and other premises retained by Ascutney.

ARTICLE XIV

Effective Date

This amended Declaration shall become effective upon the recording thereof in the West Windsor Land Records together with a Certification by the Secretary of Mt. Ascutney Corporation certifying that notice thereof was forwarded to each owner of property of the Mt. Ascutney Ski Area development and approved by a majority of all owners who were such at the date of such amendment.

ARTICLE XV

Other Lands

Any other lands which may have been conveyed subject to the

1965 Protective Covenants and/or the Sky Hawk Covenants shall continue to be subject to such covenants as heretofore recorded in the West Windsor Land Records, unless such lands are included within the areas depicted on Exhibit A attached hereto.

IN WITNESS WHEREOF, Mt. Ascutney Corp. has caused its name to be subscribed hereunto by Joseph J. Grano, Jr., its and duly authorized agent this 12th day of May, 1984.

IN PRESENCE OF:

Witnesses

MT. ASCUTNEY CORP.

By: Joseph J. Grano
Its President
and duly authorized agent

STATE OF VERMONT)
WINDSOR COUNTY) SS. At West Windsor, this 12th day of May, 1984, JOSEPH J. GRANO, JR., President of Mt. Ascutney Corporation, personally appeared, and acknowledged this instrument by him sealed and subscribed, to be his free act and deed, and the free act and deed of the Corporation.

Before me, Curtis L. Bowdoin
Notary Public

MT. ASCUTNEY CORP.

SECRETARY'S CERTIFICATION OF VOTE

I, PETER G. CARDASIS, Secretary of Mt. Ascutney Corp., a Vermont corporation with its principal place of business in Brownsville, Town of West Windsor, Vermont, hereby certify as follows:

1. Mt. Ascutney Corp. is successor to Mt. Ascutney Ski Area, Inc. and Sky Hawk Corporation, developer of lands of Mt. Ascutney Ski Area, Inc.

2. On May 16, 1984 Mt. Ascutney Corp. forwarded a Ballot to all owners of property at the Mt. Ascutney Ski Area in Brownsville, by certified mail, at their last known address, together with a copy of the proposed "Amended Declaration of Protective Covenants, Restrictions and Reservations" dated May 12, 1984, with Schedule A, attached hereto.

3. As of this date, Mt. Ascutney Corporation has received 85 affirmative written votes, 13 negative votes and received no notification of disapproval 21 owners, under Article VI B of the Protective Covenants dated April 5, 1964. If an owner did not notify Mt. Ascutney Corporation of his disapproval within sixty (60) days of notification of the Amendment of his disapproval, such owner will be considered to have approved such amendment.

4. Mt. Ascutney Corporation has received approval by a majority of all owners subject to the original Covenants at the date of mailing such Amendment as required by Article VI B(1) thereof.

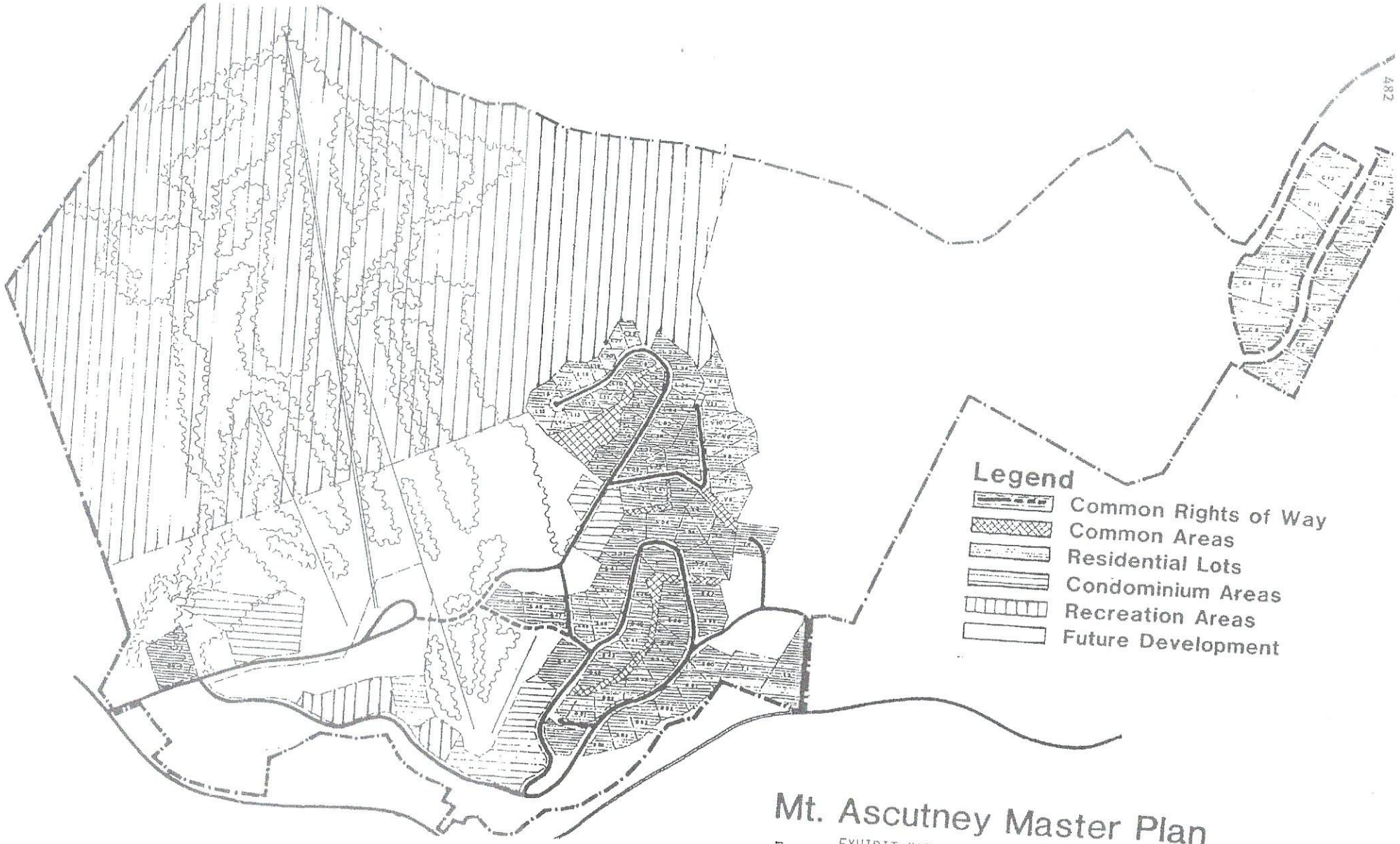
5. Mt. Ascutney Corporation reaffirms that Amendment of the Sky Hawk and Ascutney Mountain Village Protective Covenants is in the best interest of the development.

6. The attached Amended Declaration of Protective Covenants, Restrictions and Reservations dated May 12, 1984 shall be effective upon recording of the same with this Certification in the West Windsor Land Records.

Dated at Brownsville, Vermont this 10th day of August, 1984.

MT. ASCUTNEY CORPORATION

By: Peter G. Cardasis
It's Secretary



Mt. Ascutney Master Plan

EXHIBIT "A"